

Naaz Fatima v. Purvanchal Vidhut Vitrana Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 23 January 2025 · 2025:AHC:11788-DB · WRIT - C No. 40608 of 2024 · **Writ disposed; 4.44 hearing and order directed in four weeks**

HEADNOTE

Where a Clause 4.44 mutation application remains undecided despite a prior direction to process it, the licensee must hear the applicant and pass an order under that clause in accordance with law within the time fixed.

FACTUAL SUMMARY

Naaz Fatima sought a mandamus to mutate electricity connection No. 0179885000, standing in the name of Sri Klyan Kesarvani, erstwhile owner of property No. C-396, GTB Nagar, Kareli, Allahabad, into her name after installation of a new meter. A Coordinate Bench on 10 October 2023 in Writ-C No. 34644 of 2023 had already directed Purvanchal Vidyut Vitran Nigam Limited to process her application under Clause 4.44 of the U.P. Electricity Supply Code, 2005, but the application remained undecided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.44

mutation of connection

HOLDING

Where a mutation application under Clause 4.44 remains undecided despite a prior judicial direction to process it, the licensee must grant the applicant a hearing and pass an order under Clause 4.44 in accordance with law within the time fixed by the Court. ¶ 3-4

PRINCIPLE TAGS

connection-transfer-requires-clearance-of-arrears-clause-4.44

Where a Clause 4.44 mutation application remains undecided despite a prior direction to process it, the licensee must hear the applicant and pass an order under that clause in accordance with law within the time fixed. ¶ 3-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE CONNECTION SHOULD BE MUTATED IN THE PETITIONER'S NAME

Merits of the Clause 4.44 application left to the licensee after hearing ¶ 4